

Approved as to
form only:



Date: 4/3/18

CITY CONTRACT NO. _____

PROFESSIONAL SERVICES AGREEMENT

PREAMBLE

This Agreement ("Agreement") is made and entered into this ____ day of _____, 2018, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and the Chicago Dog House, located at 113 Derr Avenue, Cheyenne, Wyoming 82007 ("the Contractor" and referred to collectively as, "Parties").

RECITALS

WHEREAS, the City has the authority under the laws of the State of Wyoming to enter into agreements with regards to real property upon terms and for such purposes as are in the public interest;

WHEREAS, the City desires to enter into a service agreement whereby the Contractor will provide food and beverage concessionaire services, more fully described herein, to members of the public at certain recreational facilities located throughout the City at City-owned facilities, such specific recreational facilities to be identified herein;

WHEREAS, the City solicited bids for contractors to provide the aforementioned services, and the Contractor submitted a responsible and qualified bid to provide the required services to members of the public; and

WHEREAS, it is the mutual desire of both the City and the Contractor to enter into this Agreement in accordance with the terms stated hereinafter.

AGREEMENT

NOW, THEREFORE, for and in consideration of the mutual covenants and agreements herein contained, the Parties agree as follows:

1. **FACILITIES COVERED BY THIS AGREEMENT.** The City hereby grants the Contractor the right to use the concession stands within the Pioneer Park Baseball Complex, located at 1331 Talbot Court, Cheyenne, Wyoming.

2. **ACCEPTANCE OF FACILITIES.** Neither the City nor its agents have made any warranties or representations with respect to the facilities, except as expressly set forth herein, and no rights, easements, or licenses are acquired by the Contractor, by implication or otherwise, except as expressly set forth in this Agreement. The acceptance of the facilities by the Contractor shall be conclusive evidence that the Contractor accepts the facilities "as is" and that the facilities are in good condition at the time of this Agreement.

3. **TERM.** The term of this Agreement shall commence on April 1, 2018 and shall terminate on November 1, 2018, unless sooner canceled or terminated as hereinafter provided. At the conclusion of the term stated herein, the Contractor and the City may renew for annual terms, not to exceed three (3) optional renewals, but only upon mutual agreement of the Parties reached no later than the anniversary of the commencement date stated in this numbered section of this Agreement.

4. **FEES.** The Contractor agrees to pay eleven percent (11%) of gross sales for the Pioneer Park Baseball Complex for the 2018 Season. Payment shall be made in the form of check payable to the City Treasurer. Payment shall be delivered or mailed to the Community Recreation and Events, 4603 Lions Park Drive, Cheyenne, Wyoming 82001. Occupation of the facilities by the Contractor for any part of a year shall be deemed occupation for the entire year for the purpose of computing user fees due under this Agreement. Payment will be due no later than October 1, 2018.

5. **SCOPE OF WORK.** The Contractor shall provide food and beverage concessionaire services at the facility or facilities identified herein for the term identified herein. The services to be provided are identified in the Scope of Work attached hereto as Exhibit A and incorporated herein as if fully set forth.

6. **ALTERATIONS.** Any remodeling or alterations of the facilities covered by this Agreement must have the prior written approval of the City. Any remodeling or alterations which take place without the City's prior written approval shall, at the expense of the Contractor, be removed and the facilities restored to their original condition if so requested by the City. At the expiration of this Agreement, Contractor shall have the right to remove all trade fixtures incident to the operation of the concession stands and placed therein by the Contractor, provided the facilities are restored to equivalent or better condition as at the beginning of the term of this Agreement, all without cost to the City. In so doing, any holes in the walls or floors or any other damage which occurs incident to the removal of said trade fixtures shall be repaired to the satisfaction of the City at the Contractor's expense.

7. **UTILITIES.** Any and all utilities including sanitation, water, sewer, and electricity for the facilities shall be provided by the City. Any additional utilities shall be the sole responsibility of the Contractor.

8. **ASSIGNMENT AND SUBLETTING.** The Contractor shall not assign, transfer, mortgage, pledge, or sublet its rights under this Agreement, in whole or in part, without the prior written consent of the City, provided, however, that nothing herein shall be construed to prevent the Contractor from hiring employees to perform the actual operation of said facilities. All employees shall be obligated to abide by the terms and conditions of this Agreement.

9. **NON-DISCRIMINATION.** The Contractor hereby assures that no person shall be excluded from participation in, be denied the benefits of, or otherwise discriminated against, in connection with operations conducted under this Agreement on the grounds of race, color, national origin, religion, age, pregnancy, qualifying disability, gender, or any other protected class.

10. **DRUG AND ALCOHOL USAGE ON CITY PROPERTY.** In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers and other contractors under contract with City of Cheyenne, and their employees and sub-contractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and alcohol usage on City property or other sites occupied by the Contractor while performing the duties and responsibilities of the Agreement. It is the responsibility of the Contractor to be familiar with the requirements of this policy and to inform all its employees and sub-contractors of the requirements and ensure their compliance. If the Contractor or its employees or sub-contractors are found in violation of this policy, the Agreement may be terminated.

11. **COMPLIANCE WITH LAWS.** The Contractor agrees that it will use the facilities and direct its operations in accordance with all applicable local, state, and federal laws as well as with directives of the City's Community Recreation and Events Department, some of which may be necessary to ensure the City's compliance with state law, federal law, and any requirements associated with grant funding in connection with parks facilities.

12. **SIGNS.** The Contractor shall not erect, paint, or maintain any signs whatsoever within or upon any facilities located within the parks covered by this Agreement without the prior written permission of the City of Cheyenne Parks Manager.

13. **RIGHT OF INSPECTION AND ACCESS.** The City reserves for its officers, employees, and authorized representatives the full and unrestricted right to enter the facilities upon reasonable notice to the Contractor with or without the presence of the Contractor at the time of inspection. This right also applies to access for any general maintenance requirements needs.

14. **DEFAULT, CANCELLATION, AND TERMINATION.** This Agreement may be canceled by either party for cause with thirty (30) days' written notice to the other party. Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default. In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or

b. Treat the Agreement as continuing and require specific performance.

15. **TAXES, LICENSES, DEBTS.** The Contractor agrees to pay promptly all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by it in connection with its operation of the facilities, and not permit the same to become delinquent. The Contractor shall not permit any lien, mortgage, judgment or execution to be filed against the facilities.

16. INSURANCE REQUIREMENTS.

The Contractor shall file a Certificate of Insurance with the City, verifying each type of insurance coverage listed below.

The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this bid and the subsequent contract.

<u>Type of Coverage</u>	<u>Minimum Limits</u>
Commercial General Liability (Including Products and Completed Operations; Explosion, Collapse and Underground if applicable to the hazards of a specific project.)	\$1,000,000 per Occurrence \$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 CSL
Workers' Compensation OR Employer's Liability	Statutory \$500,000 Each Accident \$500,000 Each Disease- Policy Limit \$500,000 Disease/Each Employee

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the project and contract. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

The City of Cheyenne shall be named as an additional insured on the Contractor's insurance policies, except workers' compensation, and the Contractor shall provide a copy of the endorsements providing this coverage.

The City has the right to reject a certificate of insurance if the Contractor's insurance company is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

The City has the right to review the insurance certificates of any or all sub-contractors engaged by the Contractor with the permission of the City. The City requires permitted sub-contractors to provide insurance coverages be at least equivalent to that required of the Contractor.

The City has the right to increase the required minimum limit of liability on any contract project as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to: (i) handling of hazardous materials; and (ii) activities involving large congregations of people.

The City shall have the right to consult with the Contractor's insurance agent for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to: (i) exclusions; (ii) deductibles; and (iii) claims in progress which could significantly reduce the annual aggregate limit.

17. INDEMNITY.

a. In entering into the Agreement, the Contractor agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against any and all claims and costs, including attorney's fees, arising during and after the Agreement term that result from the Contractor's performance of the Agreement, and shall carry insurance as set forth in these contract documents. The Contractor acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City.

b. It is expressly understood and agreed that although City officials have the right under this Agreement to observe and review the work and operations of the Contractor, this shall not relieve the Contractor from any of its covenants and obligations hereunder, and the Contractor shall be responsible for and hold the City and its officers and employees harmless from all suits, actions or claims of any character due to injuries or damages sustained by any person or property in consequence of any neglect in performing the work, observing safety standards or regulations, or otherwise, or through the use of unsafe or unacceptable practices or materials in the performance of the work, or the Contractor's failure to comply with any law, ordinance or regulation.

18. GOVERNMENTAL IMMUNITY. Except with respect to enforcement of this Agreement between the Parties, the City and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Further, the City fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement.

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

19. **WAIVERS.** No waiver or default by the Contractor of any of the terms, covenants or conditions hereof to be performed, kept, and observed by the Contractor shall be construed as, or operate as, a waiver by the City of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept and observed by the Contractor.

20. **SURRENDER; CLEANING CHARGE.** The Contractor shall surrender the facilities to the City at the end of each scheduled playing season in good state and condition, reasonable wear and tear excepted. The end of the scheduled playing season means the last calendar day on which an event is scheduled for that playing season. Within twenty (20) calendar days after the end of the scheduled playing season, the Contractor shall remove all supplies, food products, personal items, trash, and moveable equipment such as hot dog grills, coffee makers, and other similar appliances. The Contractor shall also clean all surfaces and the floors. The failure of the Contractor to clean the facilities in the manner and within the time limits specified herein is deemed to be an acceptance and agreement to pay a minimum of \$200.00 for cleaning charges incurred by the City. The failure of the Contractor to remove any equipment within the twenty (20) calendar-day period after the conclusion of the scheduled playing season shall result in the forfeiture of such equipment or material without any additional notice. Any notice provided by the City to the Contractor to clean the facilities or to remove any equipment or material after the twenty (20) day period following the end of the scheduled playing season shall not be deemed to be a waiver of the City's right to enforce the provisions contained within this numbered section of this Agreement.

21. **SPECIAL CONDITIONS.** This Agreement and all provisions hereof shall be subject to the following special conditions.

a. The Contractor agrees that during normally scheduled league games, and for scheduled make-up games, the Contractor shall provide concessions during peak hours, beginning a minimum of fifteen (15) minutes prior to the first scheduled game time and continuing until at least forty-five (45) minutes past the start of the last scheduled games at each facility. Game schedules will be posted via the City of Cheyenne website "Athletic Facilities Calendars" or other similar location, but it is the duty of the Contractor to determine the game schedules, by which their services are set.

b. The Contractor agrees that during tournaments the Contractor shall provide concessions during peak hours, beginning a minimum of fifteen (15) minutes prior to the first scheduled game time and continuing until at least forty-five (45) minutes past the start of the last scheduled games at each facility. Tournament schedules will be provided to the Contractor by the City no later than 12:00 p.m. two (2) days prior to the start of a scheduled tournament. It is the duty of the Contractor to obtain a schedule of games from the Tournament Director or such other responsible party that shall set the schedule of games for any tournament-type event.

c. The Contractor shall provide concessions for all hours of league operation as specified above. The Contractor shall be required to keep themselves updated on game and tournament schedules via the City of Cheyenne website "Athletic Facilities Calendars" or other such source for game and tournament schedule information. If the Contractor is unable to provide concessions for any scheduled game, the Contractor shall notify the City forty-

eight (48) hours in advance. If the Contractor fails to provide concessions for any scheduled game without providing forty-eight (48) hours advance notice, Contractor agrees to pay a Fifty Dollar (\$50.00) penalty for each such occurrence.

d. The Contractor agrees that any volunteers for concessions operations under fifteen (15) years of age shall be supervised by an adult, eighteen (18) years of age or older, at all times.

e. Rules and regulations established by the City must be followed by anyone using the facilities covered by this Agreement, and the Contractor shall assist in the enforcement of such rules and regulations.

22. MISCELLANEOUS TERMS.

a. Declaration of Governing Law. This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Wyoming.

b. Plural, Singular, Gender to be Read in Context. Any word contained in the text of this Agreement shall be read as the singular or the plural and as the masculine, feminine or neuter gender as any be applicable in the particular context.

c. Binding Effect on Parties, Representatives, Successors and Assigns. The provisions of this Agreement shall be binding on and inure to the benefit of the Parties, their legal representatives, successors and permitted assigns.

d. Parties Have Relationship of Independent Contractors. Nothing contained in this Agreement shall be deemed or construed to create the relationship of principal and agent or of partnership or of joint venture or of any Contractor whatsoever between the Contractor and the City.

e. Prior Representations Incorporated into this Agreement. All negotiations, considerations, representations and understandings between the Parties are incorporated in this Agreement, and the Contractor acknowledges that the City, and its agents and representatives, have made no representations, warranties or promises with respect to the facilities covered by this Agreement except as may be expressly set forth herein.

f. Entire Agreement - Modification in Writing, Signed and Delivered by Both Parties. This Agreement contains all of the agreements and representations between the Parties. None of the terms of this Agreement shall be waived or modified to any extent, except by a written instrument duly executed by authorized representatives of the Parties.

IN WITNESS WHEREOF, the Parties hereto have caused this instrument to be executed as of the day and year first above written.

CITY OF CHEYENNE

(SEAL)

Marian J. Orr, Mayor

Attest:

Carol Intlekofer, City Clerk

CONTRACTOR

Leonard L. Torres

EXHIBIT A

SCOPE OF WORK

1. Contractor's Responsibilities:

Contractor shall provide all necessary labor, supervision, materials, equipment and supplies to satisfactorily perform food and beverage concessionaire services for the City of Cheyenne at the Pioneer Park Baseball Complex. The City takes pride in providing exceptional customer service to our citizens and expects Contractor to demonstrate this same pride in the services performed. The Contractor shall furnish all labor, materials, equipment, supplies, tools, services and skill required to maintain a clean and safe environment throughout the term of the Agreement. It is the responsibility of the Contractor to provide food and beverage concessionaire services, and obtain permits and licenses, where applicable, from the appropriate City, State or County departments. Contractor shall have the ability and experience to operate food and beverage concession stands at the Pioneer Park Baseball Complex.

1.1. The sale of alcoholic beverages and tobacco is strictly prohibited.

1.2. Contractor shall have proprietary operational rights of the site. No other Contractor shall be allowed in the Pioneer Park Baseball Complex or surrounding areas.

1.3. The Contractor shall maintain a flexible schedule that accommodates game/tournament schedules. Hours and current schedule of games/tournaments shall be provided by the City.

1.4. From time to time, Contractor may be requested to participate in tournaments which may include additional food and beverage concessionaire services to be provided by the Contractor. The number of annual tournaments will be determined by the City.

1.5. The Contractor will be required, at its sole expense, to be responsible for all alterations necessary to accommodate equipment after having first obtained written authorization from the City of Cheyenne. The Contractor will be required to tour and to inspect the facilities with City staff prior to final contract negotiation and execution.

1.6. No signs or advertising of any kind (with the exception of a menu board) shall be installed without prior written approval of the City of Cheyenne. In addition, any sign or advertising must be approved by the Parks Division, and be in compliance with applicable laws, codes, and ordinances.

1.7. Contractor shall report vandalism and/or damage to the City's property to the City Designee immediately upon discovery.

1.8. Contractor shall provide a Concession Manager who shall be responsible for the performance of the Agreement and remain the Contractor's contact person for the duration of the Agreement. The Concession Manager shall establish a routine for communications with the City's Designee to provide a prompt and timely response to any concerns or problems that may arise. Time and frequency of direct meetings may vary as determined by the Events Manager. The Concession Manager shall contact the Events Manager to review overall performance, receive special instructions regarding tournaments, or discuss other pertinent items regarding the Agreement and the Contractor's performance.

1.9. Contractor shall furnish all supplies and materials necessary for the proper performance of the services and operation of the facility unless otherwise provided. The Contractor shall not use any material or supplies which the Events Manager determines would be unsuitable for the purpose intended, or offensive or harmful to any part of the facility, its contents, equipment, employees or patrons.

1.10. Beverages shall be either fountain drinks or served in plastic bottles. No glass bottles shall be allowed.

1.11. Contractor shall be responsible for cleaning and sanitizing food service area and emptying trash receptacles inside the facility and cleaning the area directly outside of the facility of any trash. Refuse, recyclables and trash from its operation shall be placed in a designated area from which the City will then have it removed.

1.12. Sub-contracting of the space is not permitted.

1.13. The Contractor shall conduct its operation in a manner that does not damage City's property. In the event damage occurs to City's property or any adjacent property by reason of any service operations performed under this Agreement, the Contractor shall replace or repair the same at no cost to the City. If damage caused by the Contractor has to be repaired or replaced by the City, the cost of such work shall be charged to the Contractor.

1.14. Contractor shall propose to City the prices of the products it desires to sell hereunder, and City shall review and approve prices. It is City's goal to have concession prices comparable with the market prices of other comparable concession stands.

1.15. Contractors shall comply fully with all laws, ordinances, rules and regulations of the United States, State of Wyoming, County of Laramie and the City of Cheyenne, including specific City regulations related to building permits and fees, zoning, use permit stipulations and regulations regarding alcoholic beverages, nuisance abatement, immoral conduct, smoking/non-smoking, privilege and use excise taxes.

2. City Responsibilities:

2.1. The City will be responsible for providing direction to the Contractor. These activities include, but may not be limited to, the following:

a. Identify a Contract Administrator at the time of Contractor selection. The Contract Administrator will submit in writing to the Contractor the names of City personnel that will have authority to make changes or additions to the contracted items.

b. Determine and schedule the time and frequency of direct meetings between the Community Services Director or designee and the Contractor's Concession Manager.

c. Schedule inspections with the Contractor's Concession Manager. Quality service and strict adherence to the Agreement will be expected from the Contractor.